

Aman Gupta vs State Of Haryana & Another on 10 November, 2017

Author: Lisa Gill

Bench: Lisa Gill

Criminal Misc. No.M- 26401 of 2017 (O&M)

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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

Criminal Misc. No.M- 26401 of 2017 (O&M)
Date of decision : November 10, 2017

Aman Gupta

.....Petitioner

Versus

State of Haryana and another

....Respondents

CORAM:- HON'BLE MRS. JUSTICE LISA GILL

Present: Mr. Paramjit Singh Sullar, Advocate
for the petitioner.

Mr. Ramesh Kumar Ambavta, AAG, Haryana.

Mr. Ajay Jain, Advocate
for respondent No.2.

LISA GILL, J.

Prayer in this petition is for quashing of FIR No. 25 dated 12.04.2016 under Sections 313, 323, 34, 342, 406, 498A, 506 IPC registered at Police Station Women, District Hisar and all other consequential proceedings arising therefrom on the basis of a compromise arrived at between the parties.

The abovesaid FIR was registered at the instance of respondent No.2 due to matrimonial discord with her husband - petitioner. With the intervention of respectables and relatives, a compromise has been arrived at between the parties. The present petition has been filed on the basis of this compromise.

It is informed that petition under Section 13B of Hindu Marriage Act, 1955 has since been allowed on 15.09.2017. The entire settled amount has since been received by respondent No. 2. There is, thus, no impediment in the quashing of aforementioned FIR.

1 of 3 This Court on 29.08.2017 directed the parties to appear before learned trial court for recording their statements in respect to the above- mentioned compromise. Learned trial court was directed to submit a report regarding the genuineness of the compromise, as to whether it has been arrived at out of the free will and volition of the parties without any coercion, fear or undue influence. Learned trial court was also directed to intimate whether the petitioner is absconding/proclaimed offenders and whether any other case is pending against him. Information was sought as to whether all affected persons are a party to the settlement.

Pursuant to order dated 29.08.2017, the parties appeared before the learned Judicial Magistrate First Class, Hisar and their statements were recorded on 15.09.2017. Respondent No.2 stated that the matter has been amicably resolved by her with the petitioner. Petition under Section 13B of the Act filed by her and the petitioner, it is stated, was allowed on the same day. Respondent No.2 stated that she has no objection to the quashing of the abovesaid FIR qua the petitioner. Statement of the petitioner in respect to the compromise was also recorded.

As per report dated 16.09.2017 received from the learned Judicial Magistrate First Class, Hisar, it is opined that the compromise between the parties is genuine and arrived at out of free will of the parties. The petitioner is not reported to be a proclaimed offender. Statements of the parties are appended alongwith the said report.

Learned counsel for respondent No.2 reaffirms and verifies the factum of settlement between the parties. It is reiterated that respondent No.2 has no objection to the quashing of the abovementioned FIR.

Learned counsel for the State, on instructions from ASI Baje 2 of 3 Singh, submits that as the abovesaid FIR arises out of a matrimonial dispute, the State has no objection to the quashing of this FIR on the basis of a settlement arrived at between the parties.

In Kulwinder Singh and others versus State of Punjab and another 2007 (3) R.C.R. (Criminal) 1052, a five member Bench of this Court has observed as under:-

"The compromise, in a modern society, is the sine qua non of harmony and orderly behaviour. It is the soul of justice and if the power under Section 482 of the Criminal Procedure Code is used to enhance such a compromise which, in turn, enhances the social amity and reduces friction, then it truly is "finest hour of justice".

The Hon'ble Supreme Court in B.S.Joshi and others v. State of Haryana, 2003(4) SCC 675 has observed that it becomes the duty of the Court to encourage genuine settlements of matrimonial disputes.

Keeping in view the facts and circumstances of this case, it would be in the interest of justice to quash the abovesaid FIR as no useful purpose would be served by continuance of the present proceedings. It will merely lead to wastage of precious time of the court and would be an exercise in futility.

This petition is, thus, allowed and FIR No. 25 dated 12.04.2016 under Sections 313, 323, 34, 342, 406, 498A, 506 IPC registered at Police Station Women, District Hisar alongwith all consequential proceedings are, hereby, quashed.

November 10, 2017

rts

(Lisa Gill)

Judge

Whether speaking/reasoned :

Yes/No

Whether reportable

: Yes/No

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